

November 12, 13, 15, 2019

589 U. S.

No. 19–6189. *BROWN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

*Rehearing Denied*

No. 18–9683. *HANGO v. BARR, ATTORNEY GENERAL*, 589 U. S. 959. Petition for rehearing denied.

No. 18–9111. *NOSAIR v. UNITED STATES*, 587 U. S. 1047. Motion for leave to file petition for rehearing denied.

NOVEMBER 13, 2019

*Certiorari Denied*

No. 19–6570 (19A520). *CROMARTIE v. SHEALY ET AL.* C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 941 F. 3d 1244.

No. 19–6604 (19A534). *CROMARTIE v. FORD, WARDEN*. C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. Reported below: 795 Fed. Appx. 663.

NOVEMBER 15, 2019

*Dismissals Under Rule 46*

No. 19–371. *STEPHEN S. WISE TEMPLE v. SU*. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari dismissed under this Court’s Rule 46.1. Reported below: 32 Cal. App. 5th 1159, 244 Cal. Rptr. 3d 546.

No. 19–5579. *ECCLESTON v. UNITED STATES*. C. A. 10th Cir. Certiorari dismissed under this Court’s Rule 46.

No. 19–5580. *IN RE ECCLESTON*. Petition for writ of mandamus dismissed under this Court’s Rule 46.

*Certiorari Granted*

No. 19–373. *WALKER v. UNITED STATES*. C. A. 6th Cir. Certiorari granted. Reported below: 769 Fed. Appx. 195.

No. 18–956. *GOOGLE LLC v. ORACLE AMERICA, INC.* C. A. Fed. Cir. Motion of 78 Computer Scientists for leave to file brief

589 U. S.

November 15, 18, 2019

as *amici curiae* granted. Certiorari granted. Reported below: 886 F. 3d 1179.

No. 19–108. UNITED STATES *v.* BRIGGS; and

No. 19–184. UNITED STATES *v.* COLLINS; and UNITED STATES *v.* DANIELS. C. A. Armed Forces. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 19–108, 78 M. J. 289; No. 19–184, 78 M. J. 415 (first judgment) and 79 M. J. 199 (second judgment).

NOVEMBER 18, 2019

*Certiorari Dismissed*

No. 19–5940. PETERS *v.* YOUNG SUN KIM. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

*Miscellaneous Orders*

No. 19M63. MOORE *v.* CARR, ATTORNEY GENERAL OF GEORGIA;

No. 19M64. WOJNAROWSKI *v.* MAHALLY, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT DALLAS, ET AL.; and

No. 19M65. MALACHOWSKI *v.* UNITED STATES. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 18–1109. MCKINNEY *v.* ARIZONA. Sup. Ct. Ariz. [Certiorari granted, 587 U. S. 1050.] Motion of Criminal Justice Legal Foundation for enlargement of time for oral argument, for leave to participate in oral argument as *amicus curiae*, and for divided argument denied.

No. 18–1323. JUNE MEDICAL SERVICES L. L. C. ET AL. *v.* GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS; and

No. 18–1460. GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS *v.* JUNE MEDICAL SERVICES L. L. C. ET AL. C. A. 5th Cir. [Certiorari granted, 588 U. S. 948.] Motion of petitioners for leave to file the joint appendix pursuant to this Court's Rule 33.2 with one volume under seal granted.

No. 19–5213. ARMSTRONG *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF PENNSYLVANIA. C. A. 3d Cir.

November 18, 2019

589 U. S.

Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 907] denied. JUSTICE ALITO took no part in the consideration or decision of this motion.

No. 19–5519. WEEKS *v.* LEWIS, WARDEN. C. A. 8th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 909] denied.

No. 19–5967. THOMAS *v.* NEVADA. Sup. Ct. Nev. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until December 9, 2019, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 19–5980. IN RE SANG HING WONG. Petition for writ of mandamus denied.

No. 18–9582. IN RE ZIMMERMANN. Petition for writ of mandamus and/or prohibition denied.

*Certiorari Denied*

No. 18–1424. THOMAS *v.* ANDERSON ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 912 F. 3d 971.

No. 18–9337. BARNES *v.* WORKERS’ COMPENSATION APPEALS BOARD ET AL. C. A. 9th Cir. Certiorari denied.

No. 18–9665. HERNANDEZ-DELGADO *v.* CALIFORNIA. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 18–9687. LUCIO-GARZA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 190.

No. 18–9744. QUINN *v.* VANNOY, WARDEN. Sup. Ct. La. Certiorari denied. Reported below: 2018–1103 (La. 3/18/19), 265 So. 3d 760.

No. 19–68. UNITY HEALTHCARE *v.* AZAR, SECRETARY OF HEALTH AND HUMAN SERVICES. C. A. 8th Cir. Certiorari denied. Reported below: 918 F. 3d 571.

No. 19–197. BEHM *v.* MONTANA-DAKOTA UTILITIES Co. Sup. Ct. N. D. Certiorari denied. Reported below: 2019 ND 139, 927 N. W. 2d 865.

589 U. S.

November 18, 2019

No. 19–253. *STRAIGHT PATH IP GROUP, LLC v. APPLE INC. ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 748 Fed. Appx. 1027.

No. 19–279. *JOHNSON v. NEW DESTINY CHRISTIAN CENTER CHURCH, INC., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 991.

No. 19–289. *COUNTY OF SAN DIEGO, CALIFORNIA, ET AL. v. SOLER.* C. A. 9th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 383.

No. 19–332. *DAVIS ET AL. v. BANK OF AMERICA CORP. ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–335. *CHAWLA v. APPEALS COURT OF MASSACHUSETTS.* Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 482 Mass. 1001, 120 N. E. 3d 326.

No. 19–339. *SONNIER v. CATHOLIC FOUNDATION OF THE DIOCESE OF LAFAYETTE ET AL.* Ct. App. La., 3d Cir. Certiorari denied. Reported below: 2018–289 (La. App. 3 Cir. 12/27/18), 261 So. 3d 965.

No. 19–340. *EBERT v. DEJORIA ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 922 F. 3d 690.

No. 19–342. *MCCAFFREY v. CHAPMAN ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 921 F. 3d 159.

No. 19–354. *EASTERDAY v. ESTATE OF EASTERDAY.* Sup. Ct. Pa. Certiorari denied. Reported below: 653 Pa. 143, 209 A. 3d 331.

No. 19–356. *ROBINSON v. ROBINSON.* Ct. App. Colo. Certiorari denied.

No. 19–362. *JONES v. JONES.* Ct. App. Cal., 5th App. Dist. Certiorari denied. Reported below: 18–589 (La. App. 5 Cir. 1/30/19), 265 So. 3d 957.

No. 19–363. *NASH v. NASH ET AL.* Ct. App. Ark. Certiorari denied. Reported below: 2019 Ark. App. 173, 574 S. W. 3d 171.

No. 19–375. *NEWMAN v. YORK, AS PERSONAL REPRESENTATIVE, ET AL.* Ct. App. Ind. Certiorari denied. Reported below: 119 N. E. 3d 238.

November 18, 2019

589 U. S.

No. 19–383. *RAIMONDO v. HOOD*, CHIEF JUDGE, UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF MICHIGAN, ET AL. C. A. 8th Cir. Certiorari denied.

No. 19–384. *TAYLOR v. CITY OF SHERMAN, TEXAS*, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 250.

No. 19–390. *JAMES ET AL. v. HUNT ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 968.

No. 19–396. *SIMON v. DEPARTMENT OF JUSTICE ET AL.* C. A. 1st Cir. Certiorari denied.

No. 19–397. *LEVY v. BASF METALS LTD. ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 917 F. 3d 106 and 755 Fed. Appx. 29.

No. 19–408. *NEHRKE v. WELLS FARGO BANK, N. A.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 273 So. 3d 998.

No. 19–424. *JAMES v. MICHIGAN.* Ct. App. Mich. Certiorari denied. Reported below: 326 Mich. App. 98, 931 N. W. 2d 50.

No. 19–443. *KINNEY v. GUTIERREZ*, JUDGE, UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF CALIFORNIA. C. A. 9th Cir. Certiorari denied.

No. 19–444. *HOCH v. MBI ENERGY SERVICES.* C. A. 8th Cir. Certiorari denied. Reported below: 929 F. 3d 506.

No. 19–489. *HUTCHINS v. UNITED STATES.* C. A. Armed Forces. Certiorari denied. Reported below: 78 M. J. 437.

No. 19–491. *KUMAR v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 420.

No. 19–495. *SHKRELI v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 779 Fed. Appx. 38.

No. 19–499. *POSADA v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 930 F. 3d 881.

No. 19–535. *FLOWERS v. CONNECTICUT LIGHT & POWER CO.* C. A. 2d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 33.

589 U. S.

November 18, 2019

No. 19–5085. *LEE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 345.

No. 19–5089. *GANDY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 917 F. 3d 1333.

No. 19–5171. *SALDANO v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 759 Fed. Appx. 276.

No. 19–5182. *LOYOLA-VILLEGAS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 53.

No. 19–5512. *GREEN v. BECKWITH, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 158.

No. 19–5553. *ROY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 85.

No. 19–5570. *BARTON v. STRANGE, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 19–5914. *LASHER v. STAVIS ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–5925. *RHODES v. SWARTH ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5927. *RIVERA v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied. Reported below: 7 Cal. 5th 306, 441 P. 3d 359.

No. 19–5934. *MERRYMAN v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 325.

No. 19–5935. *BROWN v. CIVIL SERVICE COMMISSION*. Ct. App. Mich. Certiorari denied.

No. 19–5937. *JOHNSON v. CREDIT ONE BANK ET AL.* Cir. Ct. Prince George’s County, Md. Certiorari denied.

No. 19–5945. *SAMPSON v. GARRETT ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 917 F. 3d 880.

No. 19–5947. *KENNEDY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

November 18, 2019

589 U. S.

No. 19–5950. *MEDINA-MARTINEZ v. ARIZONA*. Ct. App. Ariz. Certiorari denied.

No. 19–5952. *GORDON v. LEE ET AL.* C. A. 5th Cir. Certiorari denied.

No. 19–5957. *HAYNES v. RIVERSIDE PRESBYTERIAN APARTMENTS*. Super. Ct. Pa. Certiorari denied. Reported below: 198 A. 3d 457.

No. 19–5965. *HILL v. WASHINGTON*. Ct. App. Wash. Certiorari denied. Reported below: 7 Wash. App. 2d 1027.

No. 19–5972. *ROBINSON v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 19–5973. *SHEPPARD v. TEXAS* (two judgments). Ct. App. Tex., 3d Dist. Certiorari denied.

No. 19–5978. *CHANCELLOR v. SELECT PORTFOLIO SERVICING, INC., ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 336.

No. 19–5985. *CARBALLO v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–5987. *BROWN v. WASHINGTON*. Sup. Ct. Wash. Certiorari denied. Reported below: 193 Wash. 2d 280, 440 P. 3d 962.

No. 19–5991. *WHITE v. ARANAS ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 776.

No. 19–5994. *BROWNLEE v. CALIFORNIA*. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 19–5997. *WILLIAMS v. MASSACHUSETTS*. Super. Ct. Mass., Middlesex County. Certiorari denied.

No. 19–6000. *KELLEY v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2019 IL App (4th) 160598, 133 N. E. 3d 641.

No. 19–6001. *PACKER v. CAPOZZA, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL.* C. A. 3d Cir. Certiorari denied.

589 U. S.

November 18, 2019

No. 19–6004. *TAYLOR v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF TEXAS*. C. A. 5th Cir. Certiorari denied.

No. 19–6007. *DELIMA v. MASSACHUSETTS ET AL.* C. A. 1st Cir. Certiorari denied.

No. 19–6013. *DANIEL v. T&M PROTECTION RESOURCES, LLC*. C. A. 2d Cir. Certiorari denied. Reported below: 771 Fed. Appx. 123.

No. 19–6026. *SIMON v. CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–6028. *LANE v. NADING ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 927 F. 3d 1018.

No. 19–6040. *WEEMS v. BAYLOR SCOTT & WHITE MEDICAL CENTER-HILLCREST*. Sup. Ct. Tex. Certiorari denied. Reported below: 575 S. W. 3d 357.

No. 19–6051. *WHITFIELD v. BROOKHART, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 19–6080. *MARCUS H. v. CONNECTICUT*. App. Ct. Conn. Certiorari denied. Reported below: 190 Conn. App. 332, 210 A. 3d 607.

No. 19–6085. *AMODEO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 916 F. 3d 967.

No. 19–6102. *MOORE v. ASUNCION, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–6109. *MATA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6117. *IGNACIO ESTRADA v. BITER, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 1041.

No. 19–6133. *COCHRAN v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 218 Md. App. 743.

No. 19–6160. *CASWELL v. NEW YORK*. App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied. Reported below: 171 App. Div. 3d 1572, 97 N. Y. S. 3d 546.



November 18, 2019

589 U. S.

No. 19–6167. *SAUNDERS v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 201 A. 3d 857.

No. 19–6211. *CLARK v. GWYN ET AL.* Ct. App. Tenn. Certiorari denied.

No. 19–6231. *CHAPMAN v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 708 Fed. Appx. 126.

No. 19–6243. *PATRICK v. MISSISSIPPI*. Sup. Ct. Miss. Certiorari denied.

No. 19–6244. *WILLIAMS v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Va. Certiorari denied.

No. 19–6254. *SHANAHAN v. IDAHO*. Sup. Ct. Idaho. Certiorari denied. Reported below: 165 Idaho 343, 445 P. 3d 152.

No. 19–6262. *YOUNG v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–6267. *GOYNES v. NEBRASKA*. Sup. Ct. Neb. Certiorari denied. Reported below: 303 Neb. 129, 927 N. W. 2d 346.

No. 19–6268. *GRIMON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 923 F. 3d 1302.

No. 19–6269. *ROMERO MARTINEZ v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 712.

No. 19–6270. *ODELL v. MINNESOTA*. Sup. Ct. Minn. Certiorari denied. Reported below: 931 N. W. 2d 103.

No. 19–6272. *LARA-BONILLA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 406.

No. 19–6275. *JONES v. MASSACHUSETTS*. Sup. Jud. Ct. Mass. Certiorari denied.

No. 19–6276. *WILSON v. CALIFORNIA*. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied. Reported below: 33 Cal. App. 5th 559, 245 Cal. Rptr. 3d 256.

No. 19–6278. *SPANGLE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6280. *SOTO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 472.

589 U.S.

November 18, 2019

No. 19–6283. *SCOTT v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied.

No. 19–6284. *CABRERA-COSME v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6292. *MUHAMMAD v. TAYLOR ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 815.

No. 19–6295. *FLORES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 107.

No. 19–6301. *JENKINS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–6305. *SORIANO NUNEZ v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 928 F. 3d 240.

No. 19–6307. *ORECKINTO v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 698.

No. 19–6309. *BAGWELL v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 899.

No. 19–6310. *VELASQUEZ PEREZ v. DIAZ PALENCIA*. C. A. 11th Cir. Certiorari denied. Reported below: 921 F. 3d 1333.

No. 19–6311. *BOYLEN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6312. *SMITH v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6313. *SMITH v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 930 F. 3d 978.

No. 19–6315. *STAHLMAN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 934 F. 3d 1199.

No. 19–6331. *DELANCY v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 256 So. 3d 940.

No. 19–6334. *ARELLANO-BANUELOS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 927 F. 3d 355.

No. 19–6335. *BALAGIA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6338. *NELSON v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 2d Cir. Certiorari denied.

November 18, 2019

589 U. S.

No. 19–6341. *STAGNER v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 823.

No. 19–6353. *BULUC, AKA CELIBI v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 930 F. 3d 383.

No. 19–6364. *DUFFY, AKA DUFFY-CARRASCO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 947.

No. 19–6384. *JACQUES v. JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–9201. *AMERSON ET AL. v. UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF COLORADO*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 710 Fed. Appx. 789.

No. 19–16. *PEITHMAN ET AL. v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 917 F. 3d 635.

JUSTICE SOTOMAYOR, dissenting.

In *Honeycutt v. United States*, 581 U. S. 443 (2017), this Court held that joint-and-several liability is not permitted under 98 Stat. 2045, 21 U. S. C. § 853(a)(1), which mandates forfeiture of “‘property constituting, or derived from, any proceeds the person obtained, directly or indirectly, as the result of’” certain drug crimes. 581 U. S., at 445. The Court of Appeals for the Third Circuit has since held that the reasoning of *Honeycutt* “appl[ies] with equal force” to 18 U. S. C. § 981(a)(1)(C), which is worded almost identically to 21 U. S. C. § 853(a)(1). *United States v. Gjeli*, 867 F. 3d 418, 428 (2017).

In this case, the Court of Appeals for the Eighth Circuit reached a contrary conclusion. 917 F. 3d 635, 652–653 (2019). It upheld a joint-and-several forfeiture order against petitioners under § 981(a)(1)(C), reasoning that *Honeycutt* does not apply to that provision. See 917 F. 3d, at 652–653. The Government now concedes error. According to the Government, there is no “distinguishing 18 U. S. C. 981 from 21 U. S. C. 853 for purposes of joint and several liability.” Brief in Opposition 6; see also *id.*, at 10 (“[T]he government has agreed that *Honeycutt’s* reasoning applies to Section 981(a)(1)(C)”). Nevertheless, the Government

589 U. S.

November 18, 2019

maintains that there is an independent ground for the imposition of joint-and-several liability under § 981(a)(1)(C). See *id.*, at 6–9. The Eighth Circuit, however, never addressed that proffered alternative ground for affirmance.

Because the Government now concedes that the rationale of *Honeycutt* applies equally to § 981(a)(1)(C) as it does to § 853(a)(1), I would grant the petition for certiorari, vacate the judgment below, and remand the case to allow the Eighth Circuit to reconsider its decision in light of the Government's concession.

No. 19–239. *BENZON, WARDEN v. KELL*. C. A. 10th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 925 F. 3d 448.

No. 19–498. *ROGERS v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 768 Fed. Appx. 862.

No. 19–5942. *LAY v. OKLAHOMA DEPARTMENT OF CORRECTIONS ET AL.* C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 746 Fed. Appx. 777.

No. 19–6293. *KNOWLES v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 921 F. 3d 263.

#### *Rehearing Denied*

No. 18–1536. *COX v. OLD REPUBLIC NATIONAL TITLE INSURANCE CO. ET AL.*, 589 U. S. 925;

No. 18–9045. *ROBINSON v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON*, 589 U. S. 933;

No. 18–9246. *BRYANT v. DEPARTMENT OF EDUCATION ET AL.*, 589 U. S. 939;

No. 18–9401. *JONES v. KENTUCKY ET AL.*, 589 U. S. 945;

No. 18–9538. *HEAD v. UNITED STATES*, 589 U. S. 952;

No. 18–9561. *IN RE STEWART*, 589 U. S. 914;

No. 18–9829. *WILMORE v. UNITED STATES*, 589 U. S. 967;

No. 19–104. *TAMEZ v. UNITED STATES*, 589 U. S. 972;

No. 19–143. *GOSSAGE v. MERIT SYSTEMS PROTECTION BOARD*, 589 U. S. 974;

November 18, 22, 25, 2019

589 U. S.

No. 19–5119. *ARUCAN v. CAMBRIDGE EAST HEALTHCARE CENTER ET AL.*, 589 U. S. 983;

No. 19–5199. *ROBERSON v. ROWLETT POLICE DEPARTMENT ET AL.*, 589 U. S. 988;

No. 19–5285. *MEIER v. BERGER ET AL.*, 589 U. S. 992;

No. 19–5292. *JOSEPH v. FLORIDA*, 589 U. S. 993;

No. 19–5295. *IN RE CHARLES*, 589 U. S. 915;

No. 19–5416. *WILSON v. APEX REPORTING GROUP, INC.*, ET AL., 589 U. S. 998; and

No. 19–5661. *ROBINSON v. WARDEN, FEDERAL CORRECTIONAL INSTITUTION, FORT DIX, ET AL.*, 589 U. S. 1005. Petitions for rehearing denied.

No. 18–9255. *RAM v. UNITED STATES*, 587 U. S. 1068. Motion for leave to file petition for rehearing denied.

No. 18–9490. *BROWN v. UNITED STATES*, 589 U. S. 1009. Petition for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

## NOVEMBER 22, 2019

*Certiorari Granted*

No. 19–71. *TANZIN ET AL. v. TANVIR ET AL.* C. A. 2d Cir. Certiorari granted. Reported below: 894 F. 3d 449.

## NOVEMBER 25, 2019

*Certiorari Granted—Vacated and Remanded.* (See also *Thompson v. Hebdon*, 589 U. S. 1 (2019) (*per curiam*).)

No. 19–151. *UNITED STATES v. WALTON*. C. A. 5th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Quarles v. United States*, 587 U. S. 645 (2019). Reported below: 743 Fed. Appx. 552.

No. 19–6016. *CHANCE v. UNITED STATES*. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States v. Davis*, 588 U. S. 445 (2019). Reported below: 769 Fed. Appx. 893.

No. 19–6033. *JOHNSON v. UNITED STATES*. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case re-

589 U. S.

November 25, 2019

manded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 920 F. 3d 628.

*Certiorari Dismissed*

No. 19–6193. SMITH *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. Reported below: 770 Fed. Appx. 76.

No. 19–6401. VIOLA *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NEW YORK. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

*Miscellaneous Orders*

No. 19A545. TRUMP ET AL. *v.* MAZARS USA, LLP, ET AL. Application for stay of mandate, presented to THE CHIEF JUSTICE, and by him referred to the Court, granted. Issuance of the mandate of the United States Court of Appeals for the District of Columbia Circuit, case No. 19–5142, is stayed pending the filing and disposition of a petition for writ of certiorari, if such petition is filed on or before December 5, 2019, by noon. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the issuance of the judgment of this Court. If no petition for writ of certiorari is filed on or before December 5, 2019, by noon, the stay shall terminate.

No. 19M66. DOE *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 19M67. LEVY GARDENS PARTNERS 2007, L. P. *v.* LEWIS TITLE Co., INC., ET AL.;

No. 19M68. JOHNSON *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.;

No. 19M69. XIAO QING LIU *v.* DECAGNA ET AL.; and

No. 19M70. KELLY *v.* UNITED STATES. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 19–5659. VIOLA *v.* TATE, WARDEN. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 909] denied.

November 25, 2019

589 U. S.

No. 19–6484. *IN RE STEELE*. Petition for writ of habeas corpus denied.

No. 19–6358. *IN RE WARREN*. Petition for writ of mandamus denied.

*Certiorari Denied*

No. 18–1592. *ALLSTATE INSURANCE CO. v. RIVERA ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 913 F. 3d 603.

No. 18–6852. *CALDWELL v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 518.

No. 18–9669. *CHODOSH ET AL. v. PALM BEACH PARK ASSN.* Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 18–9679. *HARVEY ET UX. v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 469.

No. 18–9710. *TURNER v. LOUISIANA*. Sup. Ct. La. Certiorari denied. Reported below: 2016–1841 (La. 12/5/18), 263 So. 3d 337.

No. 18–9761. *GIVENS v. ILLINOIS*. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2018 IL App (1st) 152031–U.

No. 18–9762. *INSAIDOO v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 765 Fed. Appx. 522.

No. 18–9793. *GOULD v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–153. *DANIEL, INDIVIDUALLY AND AS SPECIAL ADMINISTRATOR OF THE ESTATE OF HAUGHTON v. ARMSLIST, LLC, ET AL.* Sup. Ct. Wis. Certiorari denied. Reported below: 2019 WI 47, 386 Wis. 2d 449, 926 N. W. 2d 710.

No. 19–169. *DOE v. IOWA*. Sup. Ct. Iowa. Certiorari denied. Reported below: 927 N. W. 2d 656.

No. 19–225. *UNITED STATES EX REL. STRUBBE ET AL. v. CRAWFORD COUNTY MEMORIAL HOSPITAL ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 915 F. 3d 1158.

No. 19–227. *SYED v. MARYLAND*. Ct. App. Md. Certiorari denied. Reported below: 463 Md. 60, 204 A. 3d 139.

589 U. S.

November 25, 2019

No. 19–228. UNITED STATES EX REL. PERRY *v.* HOOKER CREEK ASPHALT & PAVING, LLC, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 318.

No. 19–241. UMB BANK, N. A., ET AL. *v.* LANDMARK TOWERS ASSN., INC. Ct. App. Colo. Certiorari denied. Reported below: 436 P. 3d 1139.

No. 19–278. PFIZER INC. ET AL. *v.* SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES, ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 19–345. JOHNSON *v.* CITY OF FERGUSON, MISSOURI, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 926 F. 3d 504.

No. 19–360. KONIECZKO ET AL. *v.* ADVENTIST HEALTH SYSTEM/SUNBELT INC. ET AL. Sup. Ct. Fla. Certiorari denied.

No. 19–367. SMITH *v.* KANSA TECHNOLOGY, L. L. C. C. A. 5th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 143.

No. 19–370. SILVA-RAMIREZ *v.* HOSPITAL ESPANOL AUXILIO MUTUO DE PUERTO RICO, INC., ET AL. Sup. Ct. P. R. Certiorari denied.

No. 19–377. KAST *v.* ERICKSON PRODUCTIONS, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 482.

No. 19–382. TEETS *v.* GREAT-WEST LIFE & ANNUITY INSURANCE CO. C. A. 10th Cir. Certiorari denied. Reported below: 921 F. 3d 1200.

No. 19–388. KORMAN *v.* IGLESIAS. C. A. 11th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 680.

No. 19–395. ALESSIO *v.* UNITED AIRLINES, INC. C. A. 6th Cir. Certiorari denied.

No. 19–405. SCHIANO, DBA HOTWIREMEDIA.COM, ET AL. *v.* FRIEDMAN ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 324.

No. 19–413. ROBERT W. MAUTHE, M. D., P. C. *v.* OPTUM, INC., ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 925 F. 3d 129.



November 25, 2019

589 U. S.

No. 19–415. *ERNESTO MELENDEZ v. MCALEENAN, ACTING SECRETARY OF HOMELAND SECURITY, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 928 F. 3d 425.

No. 19–420. *HAMMAN v. UNIVERSITY OF CENTRAL FLORIDA BOARD OF TRUSTEES.* Sup. Ct. Fla. Certiorari denied.

No. 19–425. *OGUNSULA v. BARR, ATTORNEY GENERAL, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 641 Fed. Appx. 260.

No. 19–445. *NEOLOGY, INC. v. INTERNATIONAL TRADE COMMISSION ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 767 Fed. Appx. 937.

No. 19–461. *CORRAL VALENZUELA v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 931 F. 3d 605.

No. 19–472. *CITY OF EAST CLEVELAND, OHIO, ET AL. v. HUNT ET AL.* Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-1115, 128 N. E. 3d 265.

No. 19–513. *MARDOSAS v. FLORIDA.* Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 257 So. 3d 540.

No. 19–528. *SCANTLEBURY ET AL. v. UNITED STATES.* C. A. D. C. Cir. Certiorari denied. Reported below: 921 F. 3d 241.

No. 19–553. *DIARRA v. CITY OF NEW YORK, NEW YORK.* C. A. 2d Cir. Certiorari denied. Reported below: 771 Fed. Appx. 69.

No. 19–5262. *KNIGHT v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 604.

No. 19–5269. *GILBERT v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 126.

No. 19–5274. *HILL v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 915 F. 3d 669.

No. 19–5334. *VALENCIA-CORTEZ v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 419.

No. 19–5351. *JOHNSON v. SPERFSLAGE.* C. A. 8th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 592.

589 U. S.

November 25, 2019

No. 19–5429. *BURWELL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 840.

No. 19–5437. *ALEXOPOULOS v. GOLDSMITH, P. A., ET AL.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 264 So. 3d 163.

No. 19–5445. *COLEMAN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 923 F. 3d 450.

No. 19–5645. *POTTS v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied. Reported below: 6 Cal. 5th 1012, 436 P. 3d 899.

No. 19–5676. *JORDAN v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 119.

No. 19–5678. *BEYERS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–5699. *GRAY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 685.

No. 19–5988. *CHALMERS v. TENNESSEE*. Ct. Crim. App. Tenn. Certiorari denied.

No. 19–5999. *DELIMA v. YOUTUBE, INC., ET AL.* C. A. 1st Cir. Certiorari denied.

No. 19–6002. *MCCREA v. DEVAN ET AL.* Ct. Sp. App. Md. Certiorari denied. Reported below: 240 Md. App. 728 and 737.

No. 19–6003. *CHRISTIAN v. DADMUN ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 741.

No. 19–6012. *ANDERSON v. GREENE ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 694.

No. 19–6022. *RODRIGUEZ v. HEIT ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–6023. *RINGLE v. JACKSON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6024. *ROGERS v. CALIFORNIA*. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied.

No. 19–6032. *LANGSTON v. MISSOURI BOARD OF PROBATION AND PAROLE*. Ct. App. Mo., Western Dist. Certiorari denied. Reported below: 575 S. W. 3d 744.

November 25, 2019

589 U. S.

No. 19–6043. *CASH v. LAUGHLIN, WARDEN*. Sup. Ct. Ga. Certiorari denied.

No. 19–6044. *STEVENSON v. TND HOMES I LLC*. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 482 Mass. 1006, 120 N. E. 3d 1181.

No. 19–6046. *SANDERS v. BECK ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6047. *STOMPINGBEAR v. BROWN ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–6061. *JONES v. OHIO*. Ct. App. Ohio, 9th App. Dist., Summit County. Certiorari denied. Reported below: 2019-Ohio-289.

No. 19–6068. *SITES v. WEST VIRGINIA*. Sup. Ct. App. W. Va. Certiorari denied. Reported below: 241 W. Va. 430, 825 S. E. 2d 758.

No. 19–6069. *SKAGGS v. BAKER, WARDEN, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 421.

No. 19–6070. *MCCLENON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–6072. *EPPELSHEIMER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–6074. *NELSON v. AMALGAMATED TRANSIT UNION LOCAL 1181–1061, AFL–CIO, ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–6075. *KELLY v. BISHOP, WARDEN, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 939.

No. 19–6077. *MORENO HERRERA v. DIAZ, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION*. C. A. 9th Cir. Certiorari denied.

No. 19–6083. *MOLINARO v. MOLINARO*. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied. Reported below: 33 Cal. App. 5th 824, 245 Cal. Rptr. 3d 402.

589 U.S.

November 25, 2019

No. 19–6101. *JOHNSON v. SHARP, INTERIM WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 918 F. 3d 895.

No. 19–6140. *GANT v. U.S. BANK TRUST ET AL.* Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–6207. *HENDERSON v. BOTTOM, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–6279. *SANCHEZ v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 940 F. 3d 526.

No. 19–6288. *WHITLEY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 176.

No. 19–6294. *MATTEI v. MEDEIROS, SUPERINTENDENT, MASSACHUSETTS CORRECTIONAL INSTITUTION AT NORFOLK*. C. A. 1st Cir. Certiorari denied.

No. 19–6297. *GRAY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 141.

No. 19–6308. *WINDER v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 926 F. 3d 1251.

No. 19–6314. *SAVOIE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6316. *SHELTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6318. *LOCKE v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 715.

No. 19–6322. *MILES v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied.

No. 19–6332. *GLENN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 931 F. 3d 424.

No. 19–6333. *ANGULO-CABRERA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6340. *NEUHARD v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 251.

No. 19–6345. *LUCY v. COOKS*. C. A. 11th Cir. Certiorari denied.